JFlips sign-up: complete text for legal review

This is every piece of text a parent sees when they register, taken straight from the app, so it cannot differ from the live form.

Document versions: Terms and Conditions 4.0-draft, Privacy notice 1.3-draft, Photo and video consent 1.1-draft. All are drafts.

How the form works. A parent fills in the details, reads the Terms and Conditions in a scroll box (the tick boxes stay locked until they have scrolled to the bottom), opens the privacy notice ("Click here to read the privacy notice", with its own tick), answers Yes or No for each photo and video use, and signs once at the bottom. That one signature covers all three documents. The privacy notice and the photo consent are saved as their own records, so a parent can change photo choices later without touching what they signed. The signed PDF puts all three documents, the choices made and the one signature into a single file, with the version of each document in the footer.

Two versions of every text. A parent or guardian signs for a child under 18. An adult (18 or over) signs for themselves. Both are printed below.

Where the lawyer's attention is most needed: section 2 (risks, including whether the word "death" must appear) and section 3 (responsibility, the gross negligence exception), and the questions in Part 6.

PART 1: THE FORM (information the parent gives)

Age rule. If the date of birth gives an age under 2, the form is replaced with: "Our classes start from age 2. Please message us on WhatsApp 069 040 3387 and we will help you."

Student details: first name, last name, date of birth (DD/MM/YYYY), age (filled in automatically). (Adult: "Your Details".)

Primary parent / guardian (Adult: "Your Contact Details"): full name; relationship to the child (Mother / Father / Legal guardian / Other, please say) (not asked of adults); phone number; email address; tick box: "I am this child's parent or legal guardian, and I am allowed to make decisions about their activities and medical care." (not asked of adults)

Second parent / guardian (optional, not shown to adults): "Optional. We may phone them if we cannot reach you." Full name, phone number.

Emergency contact: "Someone we can phone if we cannot reach you." (Adult: "...if you are hurt or ill.") Full name, phone number, relationship to the child (adult: relationship to you).

Young athlete (age 2 to 4 only): "Children this young need an adult close by. This is how we keep your child safe." Tick: "A parent, guardian or other responsible adult will stay at the venue for the whole class." Adult at the venue (if not a parent) and their cell number. Who may collect your child (up to 3, name and number). "We will only hand your child over to these people. If someone else is collecting, please message us before the class." Anything the coaches should know.

Health:

- Parent: "We ask for this so the coaches can look after your child properly. The coaches of your child's class can see it." Question: "Anything we should know about your child's health"
- Adult: "We ask for this so the coaches can look after you properly. Your coaches can see it." Question: "Anything we should know about your health"
- Hint: "For example asthma, epilepsy, allergies, medication, or a recent or old injury such as a fracture. If there is nothing, write None."
- Note under the box: "The emergency treatment you agree to is in section 1 of the Terms and Conditions below."
- The answer is required. If there is nothing, the parent writes None.

PART 2: TERMS AND CONDITIONS

2A. Parent or guardian signing for a child under 18

Short line above the box: "Please read the Terms and Conditions."

Index (each line jumps to that section)

1. Health and emergency treatment
2. Risks
3. Responsibility
4. Coaches' decisions
5. Belongings
6. Keeping health information up to date

Declaration at the top

I, [parent name], am the parent or legal guardian of [child name]. I confirm that, as far as I know, my child is physically, medically and mentally fit to join JFLIPS TUMBLING (JFLIPS) and take part in tumbling. I have read the risks and the terms below.

1. Health and emergency treatment

We will always try to reach you first. If there is an emergency and we cannot reach you or your emergency contact in time, I allow JFLIPS or its coaches to give basic first aid and to arrange emergency medical help for my child. That can include calling an ambulance or taking my child to a doctor or hospital. I understand that coaches are not medical professionals, and I accept responsibility for the cost of the treatment.

JFLIPS gives basic first aid where possible and calls for help when it is needed. Classes take place at a school where staff with first aid training may be on site, but JFLIPS cannot promise that they will be available.

2. Risks

Tumbling and stunting are physical sports. Even with good coaching and safe equipment, things can go wrong. The main risks are:

- falls and awkward or uncontrolled landings
- flips, jumps, rolls and balancing skills going wrong
- bumping into other children, or into equipment and mats
- strains, sprains, broken bones and dislocated joints
- head, neck and back injuries, which can be serious and, in rare cases, permanent
- injuries while a coach is helping or spotting a skill
- uneven ground, heat, cold or wet surfaces, because some classes are outdoors

Most injuries are minor, like bruises and scrapes. Serious injuries can still happen when the coaches and the children do everything right.

3. Responsibility

I accept these risks on my child's behalf. I agree that JFLIPS TUMBLING (JFLIPS), its owner and its coaches will not be held responsible for any injury, loss or damage that happens in the normal course of classes,

except where it is caused by their gross negligence or a deliberate act. I will make sure my child follows the coaches' instructions and the class rules.

4. Coaches' decisions

The coach decides which skills my child may attempt and may stop any activity they consider unsafe. My child will not attempt skills the coach has not approved. If my child will not follow safety instructions, the coach may stop them taking part for the rest of the class.

5. Belongings

I understand that JFLIPS TUMBLING (JFLIPS), its owner and its coaches are not responsible for the loss, theft or damage of any belongings my child brings to classes.

6. Keeping health information up to date

I have given accurate health information on this form. I will tell JFLIPS as soon as I can if my child's health changes, or if they have a new injury or illness.

Tick boxes (locked until the parent has scrolled to the bottom)

- I have read and understood the risks in section 2. *
- I have read and I agree to the Terms and Conditions, on my own behalf and on behalf of the enrolled student. *

2B. Adult signing for themselves (18 or over)

Short line above the box: "Please read the Terms and Conditions."

Index (each line jumps to that section)

1. Health and emergency treatment
2. Risks
3. Responsibility
4. Coaches' decisions
5. Belongings
6. Keeping health information up to date

Declaration at the top

I, [name], confirm that, as far as I know, I am physically, medically and mentally fit to join JFLIPS TUMBLING (JFLIPS) and take part in tumbling. I have read the risks and the terms below.

1. Health and emergency treatment

We will always try to reach you first. If there is an emergency and we cannot reach you or your emergency contact in time, I allow JFLIPS or its coaches to give basic first aid and to arrange emergency medical help for me. That can include calling an ambulance or taking me to a doctor or hospital. I understand that coaches are not medical professionals, and I accept responsibility for the cost of the treatment.

JFLIPS gives basic first aid where possible and calls for help when it is needed. Classes take place at a school where staff with first aid training may be on site, but JFLIPS cannot promise that they will be available.

2. Risks

Tumbling and stunting are physical sports. Even with good coaching and safe equipment, things can go wrong. The main risks are:

- falls and awkward or uncontrolled landings
- flips, jumps, rolls and balancing skills going wrong
- bumping into other participants, or into equipment and mats
- strains, sprains, broken bones and dislocated joints
- head, neck and back injuries, which can be serious and, in rare cases, permanent
- injuries while a coach is helping or spotting you
- uneven ground, heat, cold or wet surfaces, because some classes are outdoors

Most injuries are minor, like bruises and scrapes. Serious injuries can still happen when the coaches and I do everything right.

3. Responsibility

I accept these risks. I agree that JFLIPS TUMBLING (JFLIPS), its owner and its coaches will not be held responsible for any injury, loss or damage that happens in the normal course of classes, except where it is caused by their gross negligence or a deliberate act. I will follow the coaches' instructions and the class rules.

4. Coaches' decisions

The coach decides which skills I may attempt and may stop any activity they consider unsafe. I will not attempt skills the coach has not approved. If I will not follow safety instructions, the coach may stop me taking part for the rest of the class.

5. Belongings

I understand that JFLIPS TUMBLING (JFLIPS), its owner and its coaches are not responsible for the loss, theft or damage of any belongings I bring to classes.

6. Keeping health information up to date

I have given accurate health information on this form. I will tell JFLIPS as soon as I can if my health changes, or if I have a new injury or illness.

Tick boxes (locked until the parent has scrolled to the bottom)

- I have read and understood the risks in section 2. *
- I have read and I agree to the Terms and Conditions. *

PART 3: PRIVACY NOTICE (POPIA)

Shown folded away behind the line "Click here to read the privacy notice", with its own tick box.

3A. Parent or guardian

Privacy notice and consent

In terms of the Protection of Personal Information Act (POPIA)

JFlips is the responsible party for your family's personal information. This notice tells you what we collect, why we collect it, who can see it, where it is kept and what your rights are. Please read it and confirm below.

Who is responsible for your information

- JFlips (Jeandre Blacquiere). Our Information Officer is Jeandre Blacquiere. You can reach us on WhatsApp 069 040 3387 or at jflipsinc@gmail.com.

What we collect

- About your child: name, date of birth and age, class or team, attendance, and any medical conditions, injuries or allergies you tell us about. For children aged 2 to 4: who will stay at the venue and who may collect them.
- About you: name, relationship to the child, cell number, email address and your signature. Also the name and number of your emergency contact.
- Billing: invoices, the amounts owed and whether they have been paid. Payments are made by EFT, so we do not hold card details.
- A record of what you agreed to: which version of each form you saw, and the date and time you signed.

Is giving us your information voluntary?

- Yes. But we cannot enrol your child without your details, an emergency contact and your child's health information, because we need them to keep your child safe. Photo and video consent is a separate choice and is always optional.

Why we collect it

- To register your child and run classes, teams and practices safely.
- To contact you about classes, schedules, emergencies and payments.
- To invoice you and record payments.
- To keep the records the law requires, such as financial records, and to protect ourselves if a claim is made.
- Your child's medical information is special personal information. We use it only to keep your child safe and to tell a doctor or medical helper what they need to know in an emergency.

Who can see it

- JFlips management can see all of it.
- Your child's coaches can see your child's name, age, medical information and your contact numbers, so they can keep your child safe and reach you in an emergency. They cannot see your signature, email address or billing details.
- The companies that run the services we use to store and send information for us (see below). They may only use it for that.

- We do not sell your information. We do not share it with anyone else unless the law requires it or a doctor or medical helper needs it in an emergency.

Where it is kept

- Your information is stored in an online database run by Supabase. Our app and website are hosted by Vercel. We use Google Firebase to send alerts to our coaches' phones and Resend to send emails. Some of these companies are outside South Africa, so your information is sent to other countries. We only use them to run JFlips, and only people with their own login can open the information.

How long we keep it

- We keep your information while your child is enrolled. After they leave, we delete what we no longer need. We keep some records for longer, because the law requires it or because a claim could still be made: financial records, signed forms like this one, and incident or injury records. You can ask us how long we keep any record.

Your rights

- You can ask what information we hold about you and your child, and ask for it to be corrected or deleted.
- You can object to how we use your information, or withdraw this consent, at any time by contacting us. We must keep some records by law, and without safety and contact details we may not be able to keep your child enrolled.
- If you feel your information has been mishandled, you can lodge a complaint with the Information Regulator: POPIAComplaints@inforegulator.org.za.

Declaration and signature

I declare that I am the parent or legal guardian of the child or children listed and am competent to give consent on their behalf. I consent to JFlips processing my personal information and my child's personal information, including my child's medical information, as described in this notice.

Questions, or want to change your choices? Contact Jeandre Blacquiere on WhatsApp 069 040 3387 or jflipsinc@gmail.com.

- Tick box: I have read and understood this privacy notice, and I agree to it. *

3B. Adult

Privacy notice and consent

In terms of the Protection of Personal Information Act (POPIA)

JFlips is the responsible party for your family's personal information. This notice tells you what we collect, why we collect it, who can see it, where it is kept and what your rights are. Please read it and confirm below.

Who is responsible for your information

- JFlips (Jeandre Blacquiere). Our Information Officer is Jeandre Blacquiere. You can reach us on WhatsApp 069 040 3387 or at jflipsinc@gmail.com.

What we collect

- About you: name, date of birth and age, class or team, attendance, and any medical conditions, injuries or allergies you tell us about.
- Contact details: your cell number, email address and signature, and the name and number of your emergency contact.

- Billing: invoices, the amounts owed and whether they have been paid. Payments are made by EFT, so we do not hold card details.
- A record of what you agreed to: which version of each form you saw, and the date and time you signed.

Is giving us your information voluntary?

- Yes. But we cannot enrol you without your details, an emergency contact and your health information, because we need them to keep you safe. Photo and video consent is a separate choice and is always optional.

Why we collect it

- To enrol you and run classes, teams and practices safely.
- To contact you about classes, schedules, emergencies and payments.
- To invoice you and record payments.
- To keep the records the law requires, such as financial records, and to protect ourselves if a claim is made.
- Your medical information is special personal information. We use it only to keep you safe and to tell a doctor or medical helper what they need to know in an emergency.

Who can see it

- JFlips management can see all of it.
- Your coaches can see your name, age, medical information and cell number, so they can keep you safe and reach you in an emergency. They cannot see your signature, email address or billing details.
- The companies that run the services we use to store and send information for us (see below). They may only use it for that.
- We do not sell your information. We do not share it with anyone else unless the law requires it or a doctor or medical helper needs it in an emergency.

Where it is kept

- Your information is stored in an online database run by Supabase. Our app and website are hosted by Vercel. We use Google Firebase to send alerts to our coaches' phones and Resend to send emails. Some of these companies are outside South Africa, so your information is sent to other countries. We only use them to run JFlips, and only people with their own login can open the information.

How long we keep it

- We keep your information while you are enrolled. After you leave, we delete what we no longer need. We keep some records for longer, because the law requires it or because a claim could still be made: financial records, signed forms like this one, and incident or injury records. You can ask us how long we keep any record.

Your rights

- You can ask what information we hold about you, and ask for it to be corrected or deleted.
- You can object to how we use your information, or withdraw this consent, at any time by contacting us. We must keep some records by law, and without safety and contact details we may not be able to keep you enrolled.
- If you feel your information has been mishandled, you can lodge a complaint with the Information Regulator: POPIAComplaints@inforegulator.org.za.

Declaration and signature

I declare that I am 18 years or older and am competent to give consent for myself. I consent to JFlips processing my personal information, including my medical information, as described in this notice.

Questions, or want to change your choices? Contact Jeandre Blacquiere on WhatsApp 069 040 3387 or jflipsinc@gmail.com.

- Tick box: I have read and understood this privacy notice, and I agree to it. *

PART 4: PHOTO AND VIDEO CONSENT (POPIA)

Stays on the form as six Yes/No questions. Saved as its own record (with every earlier answer kept if a parent changes their choices later) and printed in the signed PDF with the answers given.

4A. Parent or guardian

Consent form: photos, videos and social media

In terms of the Protection of Personal Information Act (POPIA)

JFlips sometimes takes photos and videos of children during classes, practices and showcases. We would like to use them to promote the sport and show children's progress. A child's photo or video is personal information, and we may only use it with the prior consent of a parent or legal guardian. Please choose below, for each use, whether you give consent. It is voluntary, and a "no" has no effect on your child's place at JFlips.

What are you consenting to? (each answered Yes or No, none pre-selected, all required)

1. Photos of my child on JFlips's Instagram and Facebook pages
2. Videos of my child on JFlips's Instagram and Facebook pages
3. My child's first name with photos and videos (never their surname)
4. Photos and videos of my child on JFlips's website (jflips.co.za)
5. Photos and videos of my child in printed material and presentations to schools, such as brochures
6. Recordings of my child during classes for coaching and progress, which are not made public

Your choice here never affects your child's place at JFlips.

Photos taken by other people

At competitions and showcases, organisers, other clubs and spectators may take photos and videos. We cannot control what they do with them. If you do not want your child photographed at an event, tell the coach before the event.

Our promise

- We only use photos and videos to promote JFlips and the sport and to show children's progress.
- We do not name a child's surname, address or school with photos and videos, and we do not tag children on social media.
- We only share appropriate and respectful photos and videos.
- We do not sell photos or videos or give them to third parties for their own use.
- We store recordings securely and delete them when we no longer need them or when you ask us to.

Your rights

- You can change or withdraw your consent at any time by contacting us. We will then remove the photos and videos from JFlips's own pages and website as soon as possible. We cannot control content that others have already saved or shared.
- You can ask what information we hold about your child, and ask for it to be corrected or deleted.
- We keep this form and your choices as proof of what you agreed, for as long as your child is at JFlips and afterwards for as long as the law requires or a claim could be made.

- If you feel your child's personal information has been mishandled, you can lodge a complaint with the Information Regulator: POPIAComplaints@inforegulator.org.za.

Declaration and signature

I declare that I am the parent or legal guardian of the child named above and am competent to give consent on my child's behalf. I have read and understood this form, and my choices are voluntary.

Questions, or want to change your choices? Contact Jeandre Blacquiere on WhatsApp 069 040 3387 or jflipsinc@gmail.com.

4B. Adult

Consent form: photos, videos and social media

In terms of the Protection of Personal Information Act (POPIA)

JFlips sometimes takes photos and videos during classes, practices and showcases. We would like to use them to promote the sport and show progress. A photo or video of you is personal information, and we may only use it with your consent. Please choose below, for each use, whether you give consent. It is voluntary, and a "no" has no effect on your place at JFlips.

What are you consenting to? (each answered Yes or No, none pre-selected, all required)

1. Photos of me on JFlips's Instagram and Facebook pages
2. Videos of me on JFlips's Instagram and Facebook pages
3. My first name with photos and videos (never my surname)
4. Photos and videos of me on JFlips's website (jflips.co.za)
5. Photos and videos of me in printed material and presentations to schools, such as brochures
6. Recordings of me during classes for coaching and progress, which are not made public

Your choice here never affects your child's place at JFlips.

Photos taken by other people

At competitions and showcases, organisers, other clubs and spectators may take photos and videos. We cannot control what they do with them. If you do not want to be photographed at an event, tell the coach before the event.

Our promise

- We only use photos and videos to promote JFlips and the sport and to show children's progress.
- We do not name your surname or address with photos and videos, and we do not tag you on social media.
- We only share appropriate and respectful photos and videos.
- We do not sell photos or videos or give them to third parties for their own use.
- We store recordings securely and delete them when we no longer need them or when you ask us to.

Your rights

- You can change or withdraw your consent at any time by contacting us. We will then remove the photos and videos from JFlips's own pages and website as soon as possible. We cannot control content that others have already saved or shared.

- You can ask what information we hold about you, and ask for it to be corrected or deleted.
- We keep this form and your choices as proof of what you agreed, for as long as you are at JFlips and afterwards for as long as the law requires or a claim could be made.
- If you feel your personal information has been mishandled, you can lodge a complaint with the Information Regulator: POPIAComplaints@inforegulator.org.za.

Declaration and signature

I declare that I am 18 years or older and am competent to give this consent for myself. I have read and understood this form, and my choices are voluntary.

Questions, or want to change your choices? Contact Jeandre Blacquiere on WhatsApp 069 040 3387 or jflipsinc@gmail.com.

PART 5: SIGNATURE AND WHAT THE PARENT RECEIVES

Signature box: "One signature covers everything above: the Terms and Conditions, the privacy notice and the photo and video choices you made." The parent signs once, with a finger or a mouse.

Button: Complete Registration. Small print: "By pressing the button you confirm what you have ticked and signed above. A signed PDF of each form will be available to download."

Thank-you page: "[child] has been registered. We will be in touch shortly regarding class assignment." (Adult: "You are registered. ...") For ages 2 to 4: "Remember, an adult needs to stay at the venue for the whole class." For everyone: "You can change your photo and video choices at any time. Just message us on WhatsApp 069 040 3387." Then one button, "Download Signed Forms (PDF)".

What the signed PDF contains: details of the child, parent, emergency contact and health answer; the Terms and Conditions with the two confirmations; the privacy notice with its confirmation; the photo and video consent with every Yes/No answer given; the one signature with the date and time; and a table of the version of each document that was signed.

PART 6: QUESTIONS THAT MUST BE ANSWERED BEFORE THIS GOES LIVE

6A. Enrolment terms (section 7 of the Terms and Conditions is empty until these are decided)

The app already supports this section. Once the answers are written as rules, section 7 appears on the form, in the index and on the PDF with no other change.

1. Weather: some classes and practices are outdoors. When a class is cancelled for weather, is there a replacement class, a credit, or nothing? Who decides, and how are parents told?
2. Absences and no-shows: is a class the child misses still charged? Is a credit given for notice, illness, or school events? How much notice is needed?
3. Late collection: is there a grace period, a fee, or a rule about what happens to a child who is not collected?
4. Payment: invoices go out monthly and are paid by EFT. By which date is payment due, what happens when an account is late, and can a child be stopped from attending until it is paid?
5. Leaving the club: how much notice does a family give, and must all accounts be settled? (This links to the privacy notice, which says information is kept after a child leaves and some records are kept for longer.)
6. The free first class: should the terms say it is free once per child, and what happens if a child returns later?
7. Changes: how much notice is given when fees, class times or venues change?
8. Behaviour and safety: when may a coach or JFlips remove a child from a class or from the club?
9. Injuries and incidents: should the terms say that an injury or incident will be recorded and the parent told on the day?

6B. Blanks in the other documents

1. **Company name.** The form says "JFLIPS TUMBLING (JFLIPS)" throughout. Is there a registered company or other legal name that must be used?
2. **How long records are kept** after a child leaves. The privacy notice currently says information is deleted when no longer needed, and that financial records, signed forms like this one and incident or injury records are kept longer. What are the actual periods for each?
3. **Photo withdrawal.** When a parent withdraws photo consent, the form says photos are removed from JFlips's own pages and website "as soon as possible". Should it state a number of days?
4. **Photos taken by other people** at competitions and showcases. The form says tell the coach before the event. Is that enough, and is there anything JFlips can promise to do?
5. **Where information is kept.** The notice names Supabase (database), Vercel (hosting), Google Firebase (alerts to coaches' phones) and Resend (email), and says some are outside South Africa. Is this wording enough for sending information abroad, and should countries be named?

6C. Questions for the lawyer on the wording itself

1. **Risks (section 2).** The form lists the risks and says head, neck and back injuries can be serious and, in rare cases, permanent. Must the word "death" appear?

2. **Responsibility (section 3).** Please check this clause directly. It excludes responsibility except for gross negligence or a deliberate act.

3. **Opening declaration.** The old form said "hereby indemnify" without limit. It was replaced with a confirmation that the child is fit "as far as I know". Is that the right operative wording?

4. **Parents who are separated or divorced.** Is one parent's signature enough? The form records the relationship and a tick that the signer may make decisions about the child's activities and medical care.

5. **Emergency treatment (section 1).** Is the authority to arrange emergency medical help, with the parent accepting the cost, worded safely?

6. **One signature for three documents.** Is a single signature acceptable when the privacy notice and photo consent are also kept as separate records with their own ticks and answers?

7. **Families who already signed the older wording.** Must they sign the new documents, and by when? A personal link can be sent to each family to do this.

8. **Statement about coaches.** The privacy notice says coaches cannot see signatures, emails or billing details. This is true in the app today. Please confirm you are happy to publish it.